

Accessing Police Misconduct Records in Vermont

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Agenda

- What are the general rules for accessing police misconduct records through public records requests, and what are the most common obstacles?
- Is there any wiggle room to access specific records designated confidential by law?
- What about other evidence of misconduct?
 - *Brady-Giglio* letters
 - Body-camera footage that you suspect documents misconduct

Police Misconduct Records Generally

- Could be described as qualified public access
- Most police misconduct records plainly fall under the Public Records Act and must be produced unless specifically exempted, but several exemptions pose obstacles
- Largest barrier: 1 V.S.A. § 317(c)(7). “Personal documents relating to an individual, including information in any files maintained to hire, evaluate, promote, or discipline any employee of a public agency...”

1 V.S.A. § 317(c)(7)

- Vermont's personal privacy exemption protects personal records, ***not*** personnel records. Many public agencies take the position that anything in a personnel file is off-limits – this is wrong.
- “[T]he exception applies only to those documents that reveal intimate details of a person's life, including any information that might subject the person to embarrassment, harassment, disgrace, or loss of employment or friends.” *Kade v. Smith*, 2006 VT 44, ¶ 8.
- Requires *redaction*, not wholesale withholding.
- Requires balancing personal privacy interests against public interest in disclosure of the information.

1 V.S.A. § 317(c)(7) - Balancing

- Best guidance: *Rutland Herald v. City of Rutland*, 2013 VT 98
- Three factors:
 1. What is the significance of the public interest?
 2. What is the type and gravity of the consequence to the invasion of the individual's privacy?
 3. Are there other ways to get the requested information?
- “[W]e find no basis to order the trial court to redact personally identifying information concerning the two employees... As stated above, **the court found information about the investigations, including the penalties imposed, to be vital to the public's ability to scrutinize both the employees' behavior and the management's response to that behavior.** Additionally, it found that redacting the employees' names would cast suspicion over the whole department and minimize the hard work and dedication shown by the vast majority of the police department. **Given the minimal privacy interests at stake, and the weighty public interest in disclosure, we agree with the trial court that the balancing of relevant interests favors disclosure of these documents without the need for redaction of the employees' personally identifying information.**” 2013 VT 98, ¶ 17.

Records Specifically Exempted by Statute

VERMONT SUPERIOR
COURT
Lamoille Unit
154 Main Street
Hyde Park VT 05655
802-888-3887
www.vermontjudiciary.org



CIVIL DIVISION
Case No. 23-CV-02880
23-CV-2008

The Stowe Reporter, LLC v. Town of Stowe
&
Town of Stowe v. Aaron Calvin and Vermont Community Newspaper Group, LLC

ENTRY ORDER

Quis custodiet ipsos custodes?

—Juvenal, Satire VI, lines 347–48

The present matter before the Court is a question of legal interpretation. The Town of Stowe, both in its Declaratory Judgment action (23-CV-2008) and as a defense to the public records action (23-CV-2880) seeks a ruling from the Court as to whether the Town has an obligation under 20 V.S.A. § 2409 to keep the potential existence of an investigative report confidential despite a public record request by Aaron Calvin and the Stowe Reporter.¹ In the alternative, the parties agree that the Court may make a ruling under 20 V.S.A. § 2409(f), which allows the disclosure of information based on an order of the Court.

The undercurrent to the present legal analysis is captured in Mr. Calvin and the Stowe Reporters' filings concerning the need for the public to have information regarding the conduct, administration, and performance of local government and local government agencies. As stated above, the Mr. Calvin's and the Stowe Reporters' position is: *Who watches the watchmen?* They

- Numerous (non-PRA) statutes create carve-outs for specific misconduct records
 - e.g. 20 V.S.A. § 1923 (State Police Advisory Commission Office of Internal Investigation); 20 V.S.A. § 2409 (Vermont Criminal Justice Council)
- Depending on statutory language, may be able to **trace records back to their original source and request from that custodian**. See *The Stowe Reporter, LLC v. Town of Stowe*, 23-CV-2880 (2023)

Two Other Sources: *Brady* Letters & BWC Footage

Brady-Giglio Letters

- Maintained by prosecutors to highlight credibility of officers
- Required to be disclosed to criminal defendants under Rules of Professional Obligation
- Can be obtained via PRA

Body-Worn Camera Footage

- Typically withheld under 1 V.S.A. § 317(c)(5): “Records dealing with the detection and investigation of crime”
- As applied to evidence officer misconduct, BWC footage is arguably not an investigative record at all – and even if it is, usual rationales for withholding do not apply

Over to you, Liam